

IN THE CIRCUIT COURT OF THE 11TH
JUDICIAL CIRCUIT IN AND FOR
MIAMI-DADE COUNTY, FLORIDA

CASE NO.

CHAD CLARK,

Plaintiff,
vs.

JURY TRIAL DEMANDED

MEDTRONIC, INC. and
HEARTWARE, INC.,

Defendants.

COMPLAINT

COMES NOW the Plaintiff, CHAD CLARK, and brings this Complaint against Defendant, MEDTRONIC, INC., and HEARTWARE, INC. in support thereof states the following upon information and belief:

INTRODUCTION

1. This is a products liability action for damages for personal injuries sustained by Chad Clark (“Mr. Clark”) arising from a defective product designed, manufactured, labeled, distributed, and/or otherwise placed into the stream of commerce by Defendants. As set forth herein, Mr. Clark suffered severe injuries as a foreseeable, direct, and proximate result of defects in the HeartWare Ventricular Assist Device (HVAD). The defects in the HVAD causing Mr. Clark’s injuries were direct violations of FDA regulations and the HVAD’s premarket approval (“PMA”).

I. PARTIES

2. Plaintiff is and at all relevant times has been a citizen of Virginia.

3. Defendant, Medtronic, Inc. (“Medtronic”), is a corporation incorporated and organized under the laws of Minnesota, with its principal place of business at 710 Medtronic Parkway, Minneapolis, Minnesota 55432.

4. Defendant, HeartWare, Inc. (“HeartWare”), is a corporation incorporated and organized under the laws of Massachusetts, with its principal place of business at 500 Old Connecticut Path, Building A, Framingham, Massachusetts 01701.

5. Defendant, Medtronic, acquired HeartWare, Inc., the original designer of the HVAD, in 2016.

6. Defendant, Medtronic, is the lawful successor of HeartWare, Inc.

7. Defendant, Medtronic, assumed all liabilities of HeartWare, Inc. relating to the HVAD.

8. Defendant, Medtronic, continued to sell the HVAD after their merger with HeartWare, Inc.

9. Defendant, Medtronic, continued to manufacture the HVAD in Miami-Dade County, Florida, after its merger with HeartWare, Inc.

II. JURISDICTION

10. This Court has personal jurisdiction over Defendants because Defendants, Medtronic and HeartWare, operate, conduct, engage in, and carry on businesses in this state, including but not limited to, the manufacture, distribution, and sale of the HVAD, and have an office in this state; namely, Miami Lakes, Florida.

11. This Court has specific and general personal jurisdiction over Defendants pursuant to the Florida long-arm statute, Section 48.193 Fla. Stat. Defendants have engaged in

systematic and ongoing business transactions in the State of Florida within Miami-Dade County. Namely, Defendants operate, conduct, engage in, and carry out business ventures in the State of Florida including but not limited to manufacturing HVAD in Miami-Dade County, distributing HVAD in Florida and throughout the United States, and receiving revenues from manufacturing and distributing HVAD in Miami-Dade County, such that specific personal jurisdiction arises under Section 48.193, Fla. Stat. Additionally, many of the tortious acts of Defendants that caused or contributed to cause Plaintiff's injuries occurred in Dade County, Florida.

12. At all relevant times, Defendants were involved in manufacturing the HVAD system at their Florida facility located at 14400 NW 60th Ave, Miami Lakes, Florida 33014, located in Miami-Dade County.

III. VENUE

13. Venue is proper in this Court pursuant to Section 47.051 Fla. Stat. (2022) in that Defendants have an office for transaction of their customary business located in Miami-Dade County, Florida and many of the tortious acts of Defendants that caused or contributed to cause Plaintiff's injuries occurred in Dade County, Florida.

IV. ALLEGATIONS COMMON TO ALL COUNTS

A. Background on the HeartWare Ventricular Assist Device (HVAD)

14. A ventricular assist device is a mechanical pump. When one of the heart's natural pumps does not perform as it should, the mechanical pump is used to increase the amount of blood pumped through the body.

15. The HVAD consists of a pump that is attached to a ventricle inside the body, an external controller that monitors the pump, a driveline cable connecting the pump to the controller, and power sources that run the pump and controller.

16. The HVAD Pump is surgically implanted in a sac around a patient's heart known as the pericardial space.

17. The HVAD Pump is connected directly to the heart at the bottom of the left ventricle and pushes blood into the aorta.

18. The HVAD controller is a mini-computer that monitors the pump. The HVAD controller runs on two batteries, or one battery combined with electricity from an outlet.

B. Legal Requirements Following Premarket Approval of the HVAD

19. The Medical Device Amendments to the Food, Drug and Cosmetic Act classifies medical devices into three groups (Classes I, II, and III).

20. Class III medical devices are those that support or sustain human life, are of substantial importance in preventing impairment of human health, or which present a potential unreasonable risk of illness or injury.

21. Class III devices require U.S. Food and Drug Administration (FDA) approval in the form of premarket approval (PMA) application.

22. The HeartWare Ventricular Assist Device Pump Implant Kit is a Class III medical device.

23. The HVAD was originally approved by the FDA through the PMA process on November 20, 2012. Its PMA number is P100047.

24. Medtronic has sought and received FDA approval of nearly 200 supplements or changes to the originally approved HVAD.

25. Plaintiff's state-law claims are premised on violations of federal requirements that parallel, rather than add to, federal duties, and are therefore not preempted under *Riegel v. Medtronic*, 552 U.S. 312 (2008)

26. Federal regulations require a PMA holder such as Medtronic to comply with many requirements, including:

- a. A device may not be manufactured, packaged, stored, labeled, distributed, or advertised in a manner that is inconsistent with any conditions of approval specified in the PMA approval order for the device. 21 C.F.R §814.80.
- b. Each manufacturer shall establish and maintain procedures for control and distribution of finished devices to ensure that only those devices approved for release are distributed and that purchase orders are reviewed to ensure that ambiguities and errors are resolved before devices are released for distribution. 21 C.F.R. §820.160 (a).
- c. Each manufacturer is required to report adverse events, known as Medical Device Reporting (MDR), no later than thirty calendar days after the day they received, or otherwise became aware of information, from any source, that reasonably suggests that one of their marketed devices: (1) may have caused or contributed to a death or serious injury, or (2) has malfunctioned and would be likely to cause or contribute to a death or serious injury. 21 C.F.R. § 803.50; 21 C.F.R. § 803.52.

C. Recalls of the HeartWare Ventricular Assist Device

27. The FDA uses the term “recall” when a manufacturer takes a correction or removal action to address a problem with a medical device that violates FDA law. Recalls occur when a medical device is defective, when it could be a risk to health, or when it is both defective and a risk to health.

28. Recalls are classified as either Class I, Class II, or Class III.

29. Class I recalls are issued for a situation where there is a reasonable chance that a product will cause serious health problems or death. Class II recalls are issued for a situation where a product may cause a temporary or reversible health problem or where there is a slight chance that it will cause serious health problems or death. Class III recalls are issued for a situation where a product is not likely to cause any health problems or injury.

30. On or about April 3, 2020, Medtronic initiated a Class 1 recall of the HVAD Pump Implant Kit due to the Outflow Graft being subject to tears and the Strain Relief screw breaking during the pre-implant pump assembly and attachment to the HVAD Pump. This recall was posted by the FDA on or about May 22, 2020, and is ongoing.¹

31. Mr. Clark's HVAD was included in this recall.

32. On or about November 19, 2020, Medtronic initiated a Class I recall of the HVAD Pump Implant Kits due to delayed or failed restart after the pump had stopped. This recall was posted by the FDA on or about February 4, 2021, and is ongoing.²

33. The FDA issued this recall because the HVAD pumps manufactured with impellers from a subset of lots from a single supplier were failing to start, restart, or experiencing a delay in restarting within the maximum number of restart attempts at a rate substantially higher than pumps in the overall population.

34. Mr. Clark's HVAD was included in this recall.

35. Defendant never notified Plaintiff or Mr. Clark of any recalls related to his HVAD.

36. On or about June 3, 2021, Defendant Medtronic stopped the distribution and sale of the HVAD System and notified physicians to cease new implants of the Medtronic HVAD System.³

37. Defendant Medtronic initiated this stoppage after observational clinical comparisons found, "a higher frequency of neurological adverse events and mortality with the

¹ Ex. 1, FDA Recall Number: Z-2055-2020

² Ex. 2, FDA Recall Number: Z-0946-2021.

³ Ex. 3, Medtronic Urgent Medical Device Communication Notification Letter, June 3, 2021

HVAD System as compared to other commercially available durable left ventricular assist devices (LVAD).⁴

38. On or about April 2022 Medtronic issued an Urgent Medical Device Communication informing physicians that Medtronic has received complaints of patients with suspicion of pump thrombosis who are experiencing device malfunctions caused by a weld defect that that allowed moisture into the center post and corroded the magnets that keep the impeller rotating concentrically.⁵

39. Mr. Clark's HVAD was included in this Urgent Medical Device Communication.

40. On or about July 2022 Medtronic issued an Urgent Medical Device Correction following up on their April 2022 communication notifying physicians that they were unable to conclusively isolate the weld-nonconformance to a specific subset of Model 1103 and MCS1705PU pumps. ⁶

41. This is not Medtronic's first-time facing recall actions.

42. Medtronic recalled over 23,000 HVAD Batteries that were distributed between January 1, 2009, to present.

43. Medtronic received warning letters from the FDA attesting to the failure to establish and maintain procedures for implementing corrective and preventive action, in violation of 21 CFR 820.100(a).⁷

44. A 2014 inspection revealed that the HVAD device was adulterated within the meaning of section 501(h) of the Act, 21 U.S.C. § 351(h).⁸

⁴ Ex. 3, Medtronic Urgent Medical Device Communication Notification Letter, June 3, 2021.

⁵ Ex. 4, Urgent Medical Device Correction, April 2022

⁶ Ex. 5, Urgent Medical Device Correction, July 26, 2022

⁷ Ex. 6, Heartware Inc. 2014 Warning Letter ⁸

Ex. 5, Heartware Inc. 2014 Warning Letter ⁹

Ex. 7, FDA Form-483

45. Defendant has received multiple warnings from the FDA that the HVAD was adulterated specifically because the methods used in, or the facilities or controls used for, its manufacture, packing, storage, or installation are not in conformity with the current good manufacturing practice (cGMP) requirements of the Quality System (QS) regulation found at Title 21, Code of Federal Regulations (CFR), Part 820.

46. As of 2020, roughly 3,000 death reports and 20,000 injury reports related to the HVAD had been filed with the FDA.

D. FDA Form-483 Issued to HeartWare, Inc.

46. In 2016, Medtronic acquired HeartWare, Inc., the original manufacturer of the HVAD, and thereafter continued the manufacture, sale, and distribution of the HVAD.

47. On August 17, 2018, the FDA issued HeartWare, Inc., a Form-483 at the conclusion of several investigations and inspections of the HVAD manufacturing facilities from May through July of 2018.⁹

48. The Form-483, directed to the HVAD's Senior Manufacturing Director, cites several "objectional conditions" that violate the aforementioned FDA regulations and statutes, including the following:

- a. "Your firm has failed to adequately implement procedure SOP00161, Design Control Process, in that design inputs requirements have not always been translated into a final design output, following comprehensive verification/validation activities to ensure final system design performs and functions as described in applicable system requirements."⁸
- b. Recurring failures to correct issues with the HVAD such as cracks on the Controller housing, chemical reactions deteriorating the controller housing, bent/damaged power connector ports, and loose component rattling.⁹

⁸ Ex. 7, FDA Form-483, Observation 1

⁹ Ex. 7, FDA Form-483, Observation 1 ¹²
Ex. 7, FDA Form-483, Observation 2

- c. Failure to implement corrective and preventative actions to address multiple known nonconformities or deficiencies, especially for an investigation of “increased trend in power loss events”.¹²
- d. Failure to implement proper Product Complaint Handling procedures, specifically, emails containing reports of adverse events and/or product performance failures (including HVAD stoppage) were not considered complaints even though commonly associated with adverse events. Specifically, “at the time of this inspection your firm has 644 complaints that have been opened for 100199 days and 120 complaints opened for a period of 200-299 days.”¹⁰
- e. “Your firm has not ensured the contract manufacturer of the HVAD Controller 2.0 has implemented design systems/subsystems requirements, including testing methods, that reflect appropriate useful life and reliability attributes which are aligned with the actual use and label claims to ensure compliance of the HVAD System to design outputs...”¹¹
- f. Failure to implement the required Medical Device Reporting (MDR) procedure, in that “the firm reported 677 MDRs beyond the 30-day timeframe: 358 late initial reports (17 deaths, 154 serious injuries, and 187 malfunctions).”¹²

E. The HVAD was Manufacturer in Violation of its PMA

49. The HVAD’s PMA Approval Order mandated “that device labeling must be truthful.”¹⁶ But the HVAD did not comply with the following assertions in its labeling:

- a. “The pump should restart” after connecting a new controller.”¹³
- b. Disconnecting and then reconnecting both power supplies will result in the controller starting the pump as soon as the driveline is connected.”¹⁴
- c. “WARNING! DO NOT disconnect the driveline or power sources from the controller while cleaning it or the pump will stop. ***If this happens, reconnect the drive line to the controller as soon as possible to restart the pump.***”¹⁵

¹⁰ Ex. 7, FDA Form-483, Observation 3

¹¹ Ex. 7, FDA Form-483, Observation 3

¹² Ex. 7, FDA Form-483, Observation 5 ¹⁶

Ex. 8, PMA Package, p. 6

¹³ Ex. 8, PMA Package, pp. 97-98.

¹⁴ Ex. 8, PMA Package, p. 50

¹⁵ Ex. 8, PMA Package, p. 51

- d. “WARNING! DO NOT disconnect the driveline from the controller or the pump will stop. *If this happens, reconnect the driveline to the controller as soon as possible to restart the pump.*”¹⁶

50. The HVAD’s PMA Package also includes a Summary of Safety and Effectiveness Data (SSED) outlining key performance and design characteristics of the HVAD that were violated in this case, including:

- a. The HVAD’s batteries, when fully charged, should power the HVAD pump for approximately 4 to 6 hours;¹⁷
- b. The HVAD’s batteries are expected to have a useful operating life of greater than 250 charge and discharge cycles;²²
- c. Pump start and stop testing was conducted adequately and patients are likely to experience no more than 93 start/stop cycles in the dual mode of pump operation;¹⁸

51. The HVAD was to comply with FDA recognized standards for electrical safety, IEC 60601-1 and IEC 60601-1-1 and for electromagnetic compatibility, IEC 60601-1-2.¹⁹

52. Plaintiff does not seek to impose requirements different from or in addition to federal requirements. Rather, Plaintiff asserts state-law duties that parallel specific violations of federal obligations under 21 C.F.R. §§ 803, 814, and 820.

F. Defendant’s Violations of FDA Regulations and Statutes and the PMA Resulted in a Defective HVAD that Caused Mr. Clark’s Injuries.

53. On or about November 12, 2013, Mr. Clark was implanted with an HVAD at Fairfax Heart Hospital in Fairfax, VA.

¹⁶ Ex. 8, PMA Package, p. 86

¹⁷ Ex. 8, PMA Package, p. 11 ²²

Ex. 8, PMA Package, p. 11

¹⁸ Ex. 8, PMA Package, p. 13

¹⁹ Ex. 8, PMA Package, p. 13

54. From November 12, 2013, through March 2022 Mr. Clark had numerous issues with the HVAD device resulting in numerous medical procedures. During this time, he had numerous syncopal episodes resulting from pump thrombosis from HVAD failure. LVEF was 15% due to each pump stoppage during that time.

55. In March 2022, Mr. Clark was treated for complications in the failure of the HVAD device.

56. Subsequently to the complications from the failure of the HVAD device Mr. Clark was hospitalized from June 7, 2022- July 25, 2022, wherein he received numerous surgical interventions including explant of the HVAD and a heart transplant.

57. HVAD malfunction caused and/or contributed to cause significant decrease in Mr. Clark's ability to carry on normal daily activities of life, impaired his ability to thrive as a normal adult, prevented his ability to perform normal work functions, impaired his ability to live a life free from significant pain and suffering.

V. Causes of Action

Count I: Strict Liability

58. Plaintiff incorporates the above allegations as though fully set forth herein.

59. The HVAD implanted around Mr. Clark's heart was manufactured in violation of the Federal Food, Drug, and Cosmetic Act and federal regulations, and was manufactured in violation of Florida law that parallels federal requirements, in one or more of the following ways:

- a. The HVAD was manufactured, monitored, packed, stored, inspected, or installed in violation of Current Good Manufacturing Practices found in 21 C.F.R. Part 820 and is therefore deemed to be adulterated under 21 U.S.C. § 351(h), and a manufacturer is prohibited from introducing, delivering, or selling an adulterated device into interstate commerce under 21 U.S.C. § 331(a)–(c), (k).

- b. The HVAD implanted in Mr. Clark was adulterated because it was manufactured in deviation from Current Good Manufacturing Practices found in 21 C.F.R. Part 820.
- c. The HVAD was adulterated in interstate commerce in violation of 21 U.S.C. §§ 331(b), 351(h), and 21 C.F.R. Part 820;
- d. The HVAD was received in interstate commerce, was adulterated, and was delivered for pay or otherwise in violation of 21 U.S.C. §§ 331(c), 351(h), and 21 C.F.R. Part 820; and/or
- e. The HVAD was adulterated while held for sale after shipment in interstate commerce in violation of 21 U.S.C. §§ 331(k), 351(h), and 21 C.F.R. Part 820.

60. As a consequence of its defective manufacture, the HVAD implanted in Mr. Clark was also adulterated in violation of Florida law because its quality fell below that which Medtronic purported or represented it to possess under Section 499.006, Fla. Stat. (2022).

61. A manufacturer is prohibited by Florida statute from manufacturing, selling, or delivering an adulterated device under Section 499.005, Fla. Stat. (2022).

62. The HVAD was introduced, sold, and delivered for introduction into interstate commerce and was adulterated in violation of 21 U.S.C. §§ 331(a), 351(h); 21 C.F.R. § 820; and Section 499.005, Fla. Stat. (2022).

63. The HVAD implanted around Mr. Clark's heart was not reasonably safe for its intended use as a matter of law with respect to its manufacture.

64. As a foreseeable, direct, and proximate result of Defendant's violations of these federal and state statutes and regulations, the HVAD implanted around Mr. Clark's heart malfunctioned, causing Mr. Clark to suffer injury and damages, including pain and suffering, mental anxiety and anguish, lost wages and medical bills.

WHEREFORE, Plaintiff prays for judgment against Defendant for a fair and reasonable amount in excess of (\$75,000.00), for punitive damages, costs herein incurred, prejudgment interest, post judgment interest, and for such other and further relief as may be just and proper.

Count II: Negligence

65. Plaintiff incorporates the above allegations as though fully set forth herein.

66. Under Florida law, Defendant had a duty to individuals, including Mr. Clark, to use reasonable care in designing, assembling, manufacturing, testing, packaging, labeling, marketing, distributing, selling, promoting, and/or otherwise placing into the stream of commerce the HVAD, which includes complying with federal regulations and the HVAD's PMA designed to ensure the safe manufacture, assembly, inspection, packaging, and testing of medical devices.

67. The HVAD implanted in Mr. Clark was adulterated in violation of Florida law because, as a consequence of its defective manufacture, its quality fell below that which Medtronic purported or represented it to possess under Section 499.006, Fla. Stat. (2022).

68. A manufacturer is prohibited by Florida statute from manufacturing, selling, or delivering an adulterated device under Section 499.005, Fla. Stat. (2022).

69. The HVAD was introduced, sold, and delivered for introduction into interstate commerce and was adulterated in violation of 21 U.S.C. §§ 331(a), 351(h); 21 C.F.R. § 820; and Section 499.005, Fla. Stat. (2022).

70. The HVAD implanted around Mr. Clark's heart was not reasonably safe for its intended use as a matter of law with respect to its manufacture.

71. As a foreseeable, direct, and proximate result of Defendant's violations of these federal and state statutes and regulations, the HVAD implanted around Mr. Clark's malfunctioned causing Mr. Clark to suffer injury and damages, including pain and suffering, mental anxiety and anguish, lost wages and medical bills.

WHEREFORE, Plaintiff prays for judgment against Defendant for a fair and reasonable amount in excess of (\$75,000.00), for punitive damages, costs herein incurred, prejudgment interest, post judgment interest, and for such other and further relief as may be just and proper.

Count III: Negligent Failure to Warn

72. Plaintiff incorporates the above allegations as though fully set forth herein.

73. Under Florida law, Defendant had a duty to individuals, including Mr. Clark, to use reasonable care in warning consumers, including Mr. Clark, of particular risks of the product failing and causing injury which Defendant knew or should have known were involved in the reasonably foreseeable use of the HVAD.

74. Defendant knew of the potential risks to Mr. Clark at the time Mr. Clark received the device and throughout the time Mr. Clark had the device implanted and failed to warn, as more completely set forth above.

75. As a foreseeable, direct, and proximate result of Defendant's failure to warn Mr. Clark of the defects contained in the product Mr. Clark suffered injury and damages, including pain and suffering, mental anxiety and anguish, lost wages and medical bills.

WHEREFORE, Plaintiff prays for judgment against Defendant for a fair and reasonable amount in excess of (\$75,000.00), for punitive damages, costs herein incurred, prejudgment interest, post judgment interest, and for such other and further relief as may be just and proper.

Count IV: Strict Liability

76. Plaintiff incorporates the above allegations as though fully set forth herein.

77. Under Florida law, Defendant had a duty to individuals, including Mr. Clark, to design, assemble, manufacture, test, package, label, market, distribute, sell, promote, and/or otherwise place into the stream of commerce the HVAD, which includes complying with federal regulations and the HVAD's PMA design to ensure the safe manufacture, assembly, inspection, packaging, and testing of medical devices.

78. The HVAD implanted in Mr. Clark was adulterated in violation of Florida law because, as a consequence of its defective manufacture and design, its quality fell below that which Medtronic purported or represented it to possess under Section 499.006, Fla. Stat. (2022), thus making it unreasonably dangerous.

79. A manufacturer is prohibited by Florida statute from manufacturing, selling, designing or delivering an adulterated device under Section 499.005, Fla. Stat. (2022).

80. As a direct, and proximate result of Defendant's violations of these state statutes and regulations, the HVAD implanted around Mr. Clark's malfunctioned causing Mr. Clark to suffer injury and damages, including pain and suffering, mental anxiety and anguish, lost wages and medical bills.

WHEREFORE, Plaintiff prays for judgment against Defendant for a fair and reasonable amount in excess of (\$75,000.00), for punitive damages, costs herein incurred, prejudgment interest, post judgment interest, and for such other and further relief as may be just and proper.

Count V: Negligence Per Se

81. Plaintiff incorporates the above allegations as though fully set forth herein.

82. At all times relevant to the Complaint, Defendant owed to the general public, including Plaintiff, a duty to design, manufacture, and market only such HVADs as were not defective and unreasonably dangerous to use.

83. The HVAD was dangerously defective and unsafe for normal and foreseeable use by and in the presence of the public because of its defective manufacture.

84. The HVAD implanted around Mr. Clark's heart violated the Federal Food, Drug, and Cosmetic Act and federal regulations promulgated pursuant thereto, and violated Florida law that parallels federal requirements, in one or more of the following ways:

85. A device that has been manufactured, monitored, packed, stored, inspected, or installed in violation of 21 C.F.R. Part 820 is deemed to be adulterated under 21 U.S.C. § 351(h).

86. A manufacturer is prohibited from introducing, delivering, or selling an adulterated device into interstate commerce under 21 U.S.C. § 331(a)–(c), (k).

87. The HVAD implanted around Mr. Clark's heart was adulterated because it deviates from the specifications approved by the FDA in Medtronic's PMA application, in violation of Current Good Manufacturing Practices found in 21 C.F.R. Part 820.

88. The quality-control requirements of the CGMPs are designed to ensure Medtronic's products conform to manufacturing specifications so that nonconforming products do not reach the market.

89. The HVAD implanted in Mr. Clark was also adulterated in violation of Florida law because, as a consequence of its defective manufacture, its quality fell below that which Medtronic purported or represented it to possess under Section 499.006, Fla. Stat. (2022).

90. A manufacturer is prohibited by Florida statute from manufacturing, selling, or delivering an adulterated device under Section 499.005, Fla. Stat. (2022).

91. The HVAD was introduced, sold, and delivered for introduction into interstate commerce and was adulterated in violation of 21 U.S.C. §§ 331(a), 351(h); 21 C.F.R. § 820; and Section 499.005, Fla. Stat. (2022).

92. The HVAD was adulterated in interstate commerce in violation of 21 U.S.C. §§ 331(b), 351(h); 21 C.F.R. Part 820; and Section 499.005, Fla. Stat. (2022).

93. The HVAD was received in interstate commerce, was adulterated, and was delivered for pay or otherwise in violation of 21 U.S.C. §§ 331(c), 351(h); 21 C.F.R. 820; and Section 499.005, Fla. Stat. (2022).

94. The HVAD was adulterated while held for sale after shipment in interstate commerce in violation of 21 U.S.C. §§ 331(k), 351(h); 21 C.F.R. Part 820; and Section 499.005, Fla. Stat. (2022).

95. Mr. Clark was a member of the class of people that the aforementioned statutes and regulations were intended to protect.

96. Mr. Clark's injuries are the type that the aforementioned statutes and regulations were intended to prevent.

97. As a foreseeable, direct, and proximate result of Defendant's violations of these federal and state statutes and regulations, the HVAD implanted around Mr. Clark's heart malfunctioned causing Mr. Clark to suffer injuries and damages, including pain and suffering, mental anxiety and anguish, lost wages and medical bills.

WHEREFORE, Plaintiff prays for judgment against Defendant for a fair and reasonable amount in excess of (\$75,000.00), for punitive damages, costs herein incurred, prejudgment interest, post judgment interest, and for such other and further relief as may be just and proper.

**Count VI: Breach of Implied Warranties of Merchantability and
Fitness for Particular Purpose**

98. Plaintiff incorporates the above allegations as though fully set forth herein.

99. At all times relevant hereto, Defendant, as a merchant and manufacturer of medical devices, including the HVAD, impliedly warranted to Mr. Clark that his HVAD was fit for the ordinary purposes for which it would be used.

100. At all times relevant hereto, Mr. Clark relied on Defendant's skill and/or judgment as a merchant and manufacturer of medical devices to select or furnish suitable goods, such as the HVAD.

101. Defendant breached its implied warranty of merchantability in violation of Section 672.314 Fla. Stat. (2022) because Defendant's numerous violations of FDA regulations and the HVAD's PMA resulted in the manufacture, sale, and distribution of a defective and unmerchantable HVAD to Mr. Clark.

102. Defendant breached its implied warranty of fitness for a particular purpose in violation of Section 672.315 Fla. Stat. (2022) because Defendant's numerous violations of FDA regulations and the HVAD's PMA resulted in the manufacture, sale, and distribution of a defective HVAD to Mr. Clark that rendered it unable to perform the ordinary purposes for which it would be used.

103. As a foreseeable, direct, and proximate result of Defendant's violations of these warranties and federal and state statutes and regulations, the HVAD implanted around Mr. Clark malfunctioned, causing Mr. Clark to suffer injuries and damages, including pain and suffering, mental anxiety and anguish, lost wages and medical bills.

WHEREFORE, Plaintiff prays for judgment against Defendant for a fair and reasonable amount in excess of (\$75,000.00), for punitive damages, costs herein incurred, prejudgment interest, post judgment interest, and for such other and further relief as may be just and proper.

DEMAND FOR JURY TRIAL

Plaintiff demands trial by jury with respect to all disputes, claims, controversies, injuries, factual disputes, triable as a matter of right by a jury.

DATED: October 27, 2025

Plaintiff,

By attorneys:

/s/ D. Todd Mathews

D. Todd Mathews (FL Bar No. 163104)

BAILEY & GLASSER LLP

210 W. Division St.

Maryville, IL 62062

T: 618.726.0091

F: 304.342.1110

E: tmathews@baileyglasser.com